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AS AMENDED

By: Jech of the Senate

Caldwell (Chad) of the
House

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

A. As used in this section:

b. an account that is directly connected to an account directly connected to the minor's account;

1 3. "Content" means any information, visual depictions, tools,
2 features, links, software, or other materials that appear on or are
3 available or enabled through a social media platform;

4 4. "Directly connected" means an account on the social media
5 platform that is connected to another account by:

6 a. sending a request to connect to another account holder
7 and having the request to connect accepted by the
8 other account holder, or

9 b. receiving a request to connect from another account
10 holder and accepting the request to connect;

11 5. "Minor" means an individual under eighteen (18) years of
12 age;

13 6. "Personal information" means information that is linked or
14 can be reasonably linked to an individual, including, but not
15 limited to:

16 a. first and last name,

17 b. date of birth,

18 c. home or physical address, including street name and
19 city,

20 d. screen name or username that reveals an individual's
21 email address, first name, or last name,

22 e. telephone number,

23 f. Social Security number,
24

- g. photograph, video, or audio file containing a person's image or voice,
- h. geolocation information sufficient to identify street name and city, and
- i. any other identifier that a person may use to contact a specific individual;

7. "Push notification" means an automatic electronic message displayed on an account holder's device, when the user interface for the social media service is not actively open or visible on the device, that prompts the account holder to check or engage with the social media platform;

8. "Social media platform" means a website or internet medium that:

- a. permits a person to become a registered user, establish an account, or create a profile for the purpose of allowing users to create, share, and view user-generated content through such an account or profile,
- b. enables one or more users to generate content that can be viewed by other users of the medium, and
- c. primarily serves as a medium for users to interact with content generated by other users of the medium; and

1 9. "User" means an individual who accesses or uses a social
2 media platform.

3 B. 1. A social media platform shall perform reasonable age
4 verification methods to determine whether a user who is a resident
5 of this state is a minor. A social media company shall segregate
6 any personal information gathered specifically for reasonable age
7 verification purposes and shall not use the personal information for
8 any other purpose except those provided in subparagraphs a through f
9 of paragraph 2 of subsection D of this section.

10 2. If a user is determined to be a minor, a social media
11 platform shall:

12 a. set default privacy settings to prioritize maximum
13 privacy of such minor user's account, including
14 settings that:

15 (1) restrict the visibility of the minor user's
16 account to only connected accounts,

17 (2) limit the minor user's ability to share content
18 to only connected accounts,

19 (3) restrict any data collection and sale of data
20 from a minor user's account that is not otherwise
21 required for core functioning of the social media
22 platform,

23 (4) disable search engine indexing of the minor
24 user's profiles,

- 1 (5) restrict a minor user's direct messaging
2 capabilities to only allow for direct messaging
3 to connected accounts, and
- 4 (6) allow a minor user to download a file with all
5 information associated with his or her account,
- 6 b. implement and maintain reasonable security measures,
7 including data encryption, to protect the
8 confidentiality, security, and integrity of personal
9 information collected from a minor user who is a
10 resident of this state,
- 11 c. provide an easily accessible and understandable notice
12 that:
- 13 (1) describes any information the social media
14 platform collects from a minor user, and
- 15 (2) explains how the information may be used or
16 disclosed, and
- 17 d. disable the following features that prolong engagement
18 on a social media platform by a minor user:
- 19 (1) autoplay functions that continuously play content
20 without user interaction,
- 21 (2) scroll or pagination that loads additional
22 content as long as the user continues scrolling,
23 and
24

1 (3) push notifications prompting repeated user
2 engagement.

3 3. Upon request of a minor user, a social media platform shall:

4 a. delete the personal information of the minor user,
5 unless the information is required to be retained
6 pursuant to state or federal law, and

7 b. remove any information or material the minor user made
8 publicly available through the social media platform.

9 C. A social media company shall offer supervisory tools for a
10 minor user that the minor user may decide to activate. Such
11 supervisory tools shall include capabilities for a parent or legal
12 guardian of the minor user to:

13 1. Set time limits for the minor user's daily social media
14 service usage across devices;

15 2. Schedule mandatory breaks for the minor user during selected
16 days and times across devices;

17 3. View:

18 a. data detailing the minor user's total and average
19 daily time spent on the social media platform across
20 devices,

21 b. a list of connected accounts,

22 c. a list of accounts blocked by the minor user, and

23 d. the minor user's:

24 (1) privacy settings,

1 (2) content sensitivity settings, and

2 (3) direct messaging settings and permissions; and

3 4. Receive notifications when the minor user changes an account
4 setting described in this subsection.

5 D. 1. A social media platform shall not allow a minor user who
6 is a resident of this state to change the default data privacy
7 setting provided for in subparagraph a of paragraph 2 of subsection
8 B of this section without first obtaining verifiable written consent
9 from a minor user's parent or legal guardian. The social media
10 platform shall verify the identity of the person consenting and the
11 relationship of the person consenting to the minor.

12 2. A social media platform's terms of service related to a
13 minor user who is a resident of this state shall be presumed to
14 include an assurance of confidentiality for the minor user's
15 personal information. The presumption of confidentiality may be
16 overcome if the social media platform obtains verifiable written
17 consent from a parent or legal guard of the minor user. The
18 presumption of confidentiality does not apply to a social media
19 platform's internal use or external sharing of a minor user's
20 personal information if the use or sharing is necessary to:

21 a. maintain or analyze functioning of the social media
22 service,

23 b. enable network communications,
24

- 1 c. personalize the user's experience based on the user's
2 age and location,
3 d. display a username chosen by the minor user,
4 e. obtain reasonable age verification information as
5 required by paragraph 1 of subsection B of this
6 section, or
7 f. comply with the requirements of this act or any other
8 federal or state law.

9 E. A social media platform shall:

10 1. Implement a review process allowing a user to appeal his or
11 her age designation by submitting documentary evidence to establish
12 the user's age range; and

13 2. Review evidence submitted by the user and make a
14 determination within thirty (30) days of submission of the evidence.

15 F. The provisions of this section shall not apply to a text
16 messaging platform or a platform for which the primary purpose is
17 related to education or health care.

18 G. The Attorney General is authorized to bring a civil action
19 against a social media platform for a violation of the provisions of
20 this section and to seek injunctive relief or other appropriate
21 relief as determined by the court.

22 SECTION 2. This act shall become effective November 1, 2025.

23 COMMITTEE REPORT BY: COMMITTEE ON TECHNOLOGY AND TELECOMMUNICATIONS
24 February 27, 2025 - DO PASS AS AMENDED